

Criminal Tribes Act, 1871

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Criminal Tribes Act, 1871

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Criminal Tribes Act, 1871

Act 27 of 1871

Published on 12 October 1871

Commenced on 12 October 1871

[This is the version of this document from 12 October 1871.]

[Note: The original publication document is not available and this content could not be verified.]

Criminal Tribes Act, 1871

(Act

No. 27 of 1871

)

Last Updated 20th February, 2020

[Dated 12th October, 1871]

Received the assent of the Governor General on the 12th October 1871.

Passed by the [President]

[A.L.O., 1950 [C.O. 4], dated 26-1-1950 (w.e.f. 26-1-1950).]

of India in Council.

An Act for the Registration of Criminal Tribes and Eunuchs.

Preamble. - Whereas it is expedient to provide for the registration, surveillance and control of certain criminal tribes and eunuchs; It is hereby enacted as follows:-

1.

Short title commencement.

- This Act may be called "The Criminal Tribes' Act, 1871", [Repealed]

[Repealed by Act 16 of 1874, S. 1 and Sch.]

.

Local extent. - This section and section twenty extend to the whole of British India: the rest of this Act extends only to the territories under the governments of the Lieutenant-Governors of the North-Western Provinces and the Panjab, respectively, and under the administration of the Chief Commissioner of Oudh.

Part I ? . Criminal Tribes.

2.

Local Government to report what tribes should be declared criminal.

- If the Local Government has reason to believe that any tribe, gang or class of persons is addicted to the systematic commission of non-bailable offences, it may report the case to the [President]

[A.L.O., 1950 [C.O. 4], dated 26-1-1950 (w.e.f. 26-1-1950).]

in Council, and may request his permission to declare such tribe, gang or class to be a criminal tribe.

3.

Report to contain certain particulars.

- The report shall state the reasons why such tribe, gang or class is considered to be addicted to the systematic commission of non-bailable offences, and, as far as possible, the nature and the circumstances of the offences in which the members of the tribe are supposed to have been concerned; and shall describe the manner in which it is proposed that such tribe, gang or class shall earn its living when the provisions hereinafter contained have been applied to it.

4.

Occupation of wandering tribe to be stated and also proposed residence and means of livelihood.

- If such tribe, gang or class has no fixed place of residence, the report shall state whether such tribe, gang or class follows any lawful occupation, and whether such occupation is, in the opinion of the Local Government, the real occupation of such tribe, gang or class, or a pretence for the purpose of facilitating the commission of crimes, and shall set forth the grounds on which such opinion is based; and the report shall also specify the place of residence in which such wandering tribe, gang or class is to be settled under the provisions hereinafter contained, and the arrangements which are proposed to be made for enabling it to earn its living therein.

5.

Notification declaring tribe to be criminal.

- If, upon the consideration of any such report, the [President]

[A.L.O., 1950 [C.O. 4], dated 26-1-1950 (w.e.f. 26-1-1950).]

in Council is satisfied that the tribe, gang or class to which it relates ought to be declared criminal, and that the means by which it is proposed that such tribe, gang or class shall earn its living are adequate, he may authorize the Local Government to publish in the Local Gazette a notification declaring that such tribe, gang or class is a criminal tribe, and thereupon the provisions of this Act shall become applicable to such tribe, gang or class.

6.

Bar of jurisdiction of Courts in questions relating to notification.

- No Court of Justice shall question the validity of any such notification on the ground that the provisions hereinbefore contained, or any of them, have not been complied with, or entertain in any form whatever the question whether they have been complied with; but every such notification shall be conclusive proof that the provisions of this Act are applicable to the tribe, gang or class specified therein.

7.

Register of members of such tribes.

- When the notification mentioned in section five has been published, the Local Government may direct the Magistrate of any district in which such tribe, gang or class, or any part thereof, is at the time resident, to make a register of the members of such tribe, gang or class, or of any part thereof. The declaration of the Local Government that any such tribe, gang or class, or any part of it, is resident in any district, shall be conclusive proof of such residence.

8.

Procedure in making register.

- Upon receiving such direction, the said Magistrate shall publish a notice in the place where the register is to be made, calling upon all the members of such tribe, gang or class, or of such portion thereof as is directed to be registered, to appear, at a time and place therein specified, before such persons as he appoints, and to give those persons such information as may be necessary to enable them to make the register.

9.

Penalties for failing to appear, refusing or giving false information.

- Any member of any such tribe, gang or class who, without lawful excuse, the burthen of proving which shall lie upon him.

shall fail to appear according to such notice.

or who shall intentionally omit to furnish such information.

or who shall furnish, as true, information on the subject which he knows or has reason to believe to be false.

shall be deemed guilty of an offence under the first parts of section one hundred and seventy-four, or one hundred and seventy-six, or one hundred and seventy-seven of the Indian Penal Code, respectively, as the case may be.

10.

Charge of register and Reporting desirable alterations.

- The register, when made, shall be kept by the District Superintendent of Police, who shall, from time to time, report to the said Magistrate any alterations which ought to be made therein, either by way of addition or erasure.

11.

By whom alterations to be made.

- No alteration shall be made in such register except by or by order of the said Magistrate, and he shall write his initials against every such alteration.

Notice to persons affected. - Notice shall be given of any such intended alteration, and of the time when, and place where, it is to be made, to every person affected thereby.

12.

Complaints of entries in register.

- Any person deeming himself aggrieved by any entry made, or proposed to be made, in such register, either when the register is first made or subsequently, may complain to the said Magistrate against such entry, and the Magistrate shall retain such person's name on the register, or enter it therein, or erase it therefrom, as he may see fit.

Every order for the erasure of any such person's name shall state the grounds on which such person's name is erased.

The Commissioner shall have power to review any order of entry, retention or erasure, passed by the said Magistrate on any such complaint, either on appeal by the person registered or proposed to be registered, or otherwise.

13.

Settlement of tribe in place prescribed by Local Government.

- Any tribe, gang or class, which has been declared to be criminal, and which has no fixed place of residence, may be settled in a place of residence prescribed by the Local Government.

14.

Removal to other place.

- Any tribe, gang or class which has been declared to be criminal, or any part thereof, may, by order of the Local Government, be removed to any other place of residence.

15.

Arrangements to be made prior to settlement or removal.

- No tribe, gang or class, shall be settled or removed under the provisions of this Act until such arrangements as the Local Government shall, with the concurrence of the [President]

[A.L.O., 1950 [C.O. 4], dated 26-1-1950 (w.e.f. 26-1-1950)]

in Council, consider suitable, have been made for enabling such tribe, gang or class, or such part thereof as is to be so settled or removed, to earn a living in the place in or to which it is to be settled or removed.

16.

Transfer of register of persons ordered to be removed.

- When the removal of any persons has been ordered under this Act, the register of such persons' names shall be

transferred to the District Superintendent of Police of the district to which such persons are removed, and the Magistrate of the said district and the Commissioner of the division in which it is situated, shall thereupon be empowered to exercise respectively the powers provided in sections eleven and twelve.

17.

Power to place tribe in reformatory settlement.

- The Local Government may, with the sanction of the [President]

[A.L.O., 1950 [C.O. 4], dated 26-1-1950 (w.e.f. 26-1-1950).]

in Council, place any tribe, gang or class, which has been declared to be criminal, or any part thereof, in a reformatory settlement.

18.

Power to make rules.

- The Local Government may, with the previous consent of the [President]

[A.L.O., 1950 [C.O. 4], dated 26-1-1950 (w.e.f. 26-1-1950).]

in Council, make rules to prescribe-

(1)

the form in which the register shall be made by the said Magistrate;

(2)

the mode in which the said Magistrate shall publish the notice prescribed in section eight, and the means by which the persons whom it concerns, and the Headmen, Village-Watchmen and landowners or occupiers of the village, in which such persons reside, shall be informed of its publication;

(3)

the mode in which the notice prescribed in section eleven shall be given;

(4)

the limits within which persons whose names are on the register shall reside;

(5)

conditions as to holding passes, under which such persons may be permitted to leave the said limits;

(6)

conditions to be inserted in any such pass as to

(a)

the places where the holder of the pass may go or reside;

(b)

the officers before whom, from time to time, he shall be bound to present himself;

(c)

and the time during which he may absent himself;

(7)

conditions as to answering at roll-call or otherwise, in order to satisfy the said Magistrate or persons authorized by him, that the persons whose names are on the register are actually present at given times within the said limits;

(8)

the inspection of the residences and villages of any such tribe, gang or class, and the prevention or removal of contrivances for enabling the residents therein to conceal stolen property, or to leave their place of residence without leave;

(9)

the terms upon which registered persons may be discharged from the operation of this Act;

(10)

the mode in which criminal tribes shall be settled and removed;

(11)

the control and supervision of reformatory settlements;

(12)

the works on which, and the hours during which, persons placed in a reformatory settlement shall be employed, the rates at which they shall be paid, and the disposal, for the benefit of such persons, of the surplus proceeds of their labour after defraying the whole or such part of the expenses of then: supervision and control as to the Local

Government shall seem fit;

(13)

the discipline to which persons endeavouring to escape from any such settlement, or otherwise offending against the rules for the time being in force, shall be submitted; the periodical visitation of such settlement, and the removal from it of such persons as it shall seem expedient to remove;

(14)

and generally to carry out the purposes of this Act.

19.

Penalties for breach of rules.

- Any person violating any of the rules made under section eighteen shall be punished with rigorous imprisonment for a term which may extend to six months, or with fine, or with whipping, or with all or any two of those punishments; and, on any second conviction for a breach of any of the said rules, with rigorous imprisonment which may extend to one year, or with fine, or with whipping to be inflicted in the manner prescribed by any law in force for the time being in relation to whipping, or with all or any two of those punishments.

20.

Arrest of registered person found beyond prescribed limits.

- Any person registered under the provisions of this Act, who is found in any part of British India, beyond the limits so prescribed for his residence, without such pass as may be required by the said rules, or in a place or at a time not permitted by the conditions of his pass, or who escapes from a reformatory settlement, may be arrested without warrant by any police-officer or village-watchman, and taken before a Magistrate, who, on proof of the facts, shall order him to be removed to the district in which he ought to have resided, or to the reformatory settlement from which he has escaped (as the case may be), there to be dealt with according to the rules under this Act for the time being in force.

The rules for the time being in force for the transmission of prisoners shall apply to all persons removed under this section: Provided that an order from the Local Government or from the Inspector General of Prisons shall not be necessary, for the removal of such persons.

21.

Duties of Village-Headman, Village-Watchmen, &c.

- It shall be the duty of every Village-Headman and Village-Watchman in a village in which any persons belonging to a tribe, class or gang which has been declared criminal reside, and of every owner or occupier of land on which any such persons reside, to give the earliest information in his power at the nearest police station of

(1)

the failure of any such person to appear and give information, as directed in section eight;

(2)

the departure of any such person from such Tillage or from such land (as the case may be).

And it shall be the duty of every Village-Headman and Village-Watchman in a village, and of every owner or occupier of land, to give the earliest information in his power at the nearest police station of the arrival at such village or on such land (as the case may be) of any persons who may reasonably be suspected of belonging to any such tribe, class or gang.

22.

Penalty for breach of such duties.

- Any Village-Headman, Village-Watchman, owner or occupier of land, who shall fail to comply with the requirements of section twenty-one, shall be deemed to have committed an offence under the first part of section one hundred and seventy-six of the Indian Penal Code.

23.

Indemnity for past registrations and detentions.

- All Magistrates and other persons are hereby indemnified for anything heretofore done under the circular order 18 of 1856 of the Judicial Commissioner of the Panjab, or under any orders of the Local Governments of the North-Western Provinces or Oudh, relating to the registration or detention of tribes regarded by such Local Governments as criminal tribes; and no suit or other proceeding shall be maintained against any such Magistrate or other person in respect of anything so done.

Part II ? . Eunuchs.

24.

Registers of eunuchs and their property.

- The Local Government shall cause the following registers to be made and kept up by such officer as, from time to time, it appoints in this behalf:-

(a)

a register of the names and residences of all eunuchs residing in any town or place to which the Local Government specially extends this Part of this Act, who are reasonably suspected of kidnapping or castrating children, or of committing offences under section three hundred and seventy-seven of the Indian Penal Code, or of abetting the commission of any of the said offences; and

(b)

a register of the property of such of the said eunuchs as, under the provisions hereinafter contained, are required to furnish information as to their property.

`Eunuch' defined. - The term `eunuch' shall, for the purposes of this Act, be deemed to include all persons of the male sex who admit themselves, or on medical inspection clearly appear, to be impotent.

25.

Complaints of entries in register.

- Any person deeming himself aggrieved by any entry made or proposed to be made in such register, either when the register is first made or subsequently, may complain to the said officer, who shall enter such person's name, or erase it, or re kin it, as he sees fit.

Every order for erasure of such person's name shall state the grounds on which such person's name is erased.

The Commissioner shall have power to review any order passed by such officer on such complaint, either on appeal by the complainant or otherwise.

26.

Penalty on registered eunuch appearing in female clothes.

- Any eunuch so registered who appears, dressed or ornamented like a woman, in a public street or place, or in any other place, with the intention of being seen from a public street or place.

or dancing in public, or for hire. - or who dances or plays music, or takes part in any public exhibition, in a public street or place or for hire in a private house, may be arrested without warrant, and shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

27.

Penalty on registered eunuch keeping boy under sixteen.

- Any eunuch so registered who has in his charge, or keeps in the house in which he resides, or under his control, any boy who has not completed the age of sixteen years, shall be punished with imprisonment for a term which may extend to two years, or with fine, or with both.

28.

Maintenance and education of boys whose parents cannot be found.

- The Magistrate may direct that any such boy shall be returned to his parents or guardians, if they can be discovered. If they cannot be discovered, the Magistrate may make such arrangements as he thinks necessary for the maintenance and education of such boy, and may direct that the whole or any part of a fine inflicted under section twenty-seven may be employed in defraying the cost of such arrangements.

The Local Government may direct out of what local or municipal fund so much of the cost of such arrangements as is not met by the fine imposed, shall be defrayed.

29.

Disabilities of registered eunuchs.

- No eunuch so registered shall be capable-

(a)

of being or acting as guardian to any minor,

(b)

of making a gift,

(c)

of making a will, or

(d)
of adopting a son.

30.

Power to require information as to registered eunuch's property.

- Any officer authorized by the Local Government in this behalf may, from time to time, require any eunuch so registered to furnish information as to all property, whether movable or immovable, of or to which he is possessed or entitled, or which is held in trust for him.

Penalty for refusing such information.- Any such eunuch intentionally omitting to furnish such information, or furnishing, as true, information on the subject which he knows, or has reason to believe, to be false, shall be deemed to have committed an offence under section one hundred and seventy-six or one hundred and seventy-seven of the Indian Penal Code, as the case may be.

31.

Rules for making and keeping up registers of eunuchs.

- The Local Government may, with the previous sanction of the [President]

[A.L.O., 1950 [C.O. 4], dated 26-1-1950 (w.e.f. 26-1-1950).]

in Council, make rules for the making and keeping up and charge of registers made under this Part of the Act.

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